

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
EDWIN GONZALEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
CHRISTOPHER RYAN, Shield No. 5948, SERGEANT
VINCENT LEE, and POLICE OFFICERS JOHN DOES
#1-4 (names and number of whom are unknown at
present), and other unidentified members of the New York
City Police Department,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 26, 2013

Yours, etc.



JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Christopher Ryan, Shield #5948, 7th Precinct, 19 1/2 Pitt Street, New York, NY, 10013
Sergeant Vincent Lee, 7th Precinct, 19 1/2 Pitt Street, New York, NY, 10013

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, EDWIN GONZALEZ, by his attorneys, Jacobs & Hazan, LLP, as and for his
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of
defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section
1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United
States Constitution, and the common law and the laws of the State of New York. On May 29,
2011, at approximately 10:00 p.m., plaintiff, Edwin Gonzalez, while lawfully present in the
vicinity of Houston Street and Baruch Drive, New York, New York, was subject to an unlawful
stop, frisk, search, detention, false imprisonment, false imprisonment, assault and battery by the
defendant New York City police officers. Plaintiff was deprived of his constitutional and
common law rights when the individual defendants unlawfully stopped, questioned, frisked,
searched, confined plaintiff, caused the unjustifiable arrest of plaintiff, and used excessive force
against plaintiff in violation of the Fourth and Fourteenth Amendments to the United States
Constitution.

PARTIES

2. Plaintiff Edwin Gonzalez is a resident of the County of New York, State of
New York.

3. Police Officer Christopher Ryan, Shield # 5948, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Police Officer Christopher Ryan, Shield # 5948, is being sued in his individual and official capacity.

5. Sergeant Vincent Lee is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

6. Sergeant Vincent Lee is being sued in his individual and official capacity.

7. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

8. Police Officers John Does #1-4 are being sued in their individual and official capacities.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

12. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

13. On May 29, 2012, at approximately 10:00 p.m., plaintiff was lawfully sitting across the street from his apartment building in the vicinity of Houston Street and Baruch Drive.

14. Suddenly, three uniformed police officers, including defendant Police Officer Christopher Ryan, approached plaintiff, and asked him what he was doing and to show some identification.

15. Plaintiff responded that he lived across the street and he was getting some fresh air.

16. There was a construction site located approximately fifteen feet from where plaintiff was sitting.

17. Police Officer Christopher Ryan walked over to the construction site, picked up a hammer, and asked plaintiff whether the hammer belonged to him.

18. Plaintiff responded that the hammer did not belong to him and that it was probably part of the construction site.

19. Plaintiff told the defendant officers that he lived across the street and that he had come out to get some fresh air.

20. Thereafter, defendant unlawfully handcuffed plaintiff, without probable cause or legal justification, placed him in the back of a squad car, and transported him to the 7th Precinct.

21. When plaintiff arrived at the 7th Precinct, he tried to explain to the desk sergeant that he was arrested unlawfully.

22. In response, the desk sergeant came around from behind the desk and shot plaintiff in the back with a Taser gun.

23. After plaintiff was unlawfully and unjustifiably shot with the Taser gun, defendants forced plaintiff into the bathroom, where he was unlawfully strip searched.

24. Specifically, plaintiff was forced to take off all of his clothes and shake each piece of clothing out.

25. Plaintiff was then ordered to turn around, and with his back facing the defendant police officers, plaintiff was forced to bend over and spread his buttocks.

26. Plaintiff was then ordered to face the defendant police officers and was forced to lift his genitals.

27. At no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff.

28. At approximately 4 a.m., after approximately 6 hours in police custody at the 7th Precinct, plaintiff was transferred to Manhattan Central Booking.

29. The defendant police officers maliciously and without probable cause gave false information to the District Attorney to induce the District Attorney to file an accusatory statement against plaintiff Edwin Gonzalez.

30. After approximately 14 hours at Manhattan Central Booking, plaintiff was arraigned and given a trial date of July 18, 2012.

31. On July 18, 2012, all charges against the plaintiff were dismissed upon motion by the District Attorney.

32. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, prosecution, and use of excessive force against plaintiff.

33. The unlawful stop, question, frisk, search, false arrest, false imprisonment, and use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

34. The unlawful strip search of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

35. There is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally strip search individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual secreted contraband, evidence, or has a weapon inside a body cavity as required by Sarnicola v. The County of Westchester, 01 Civ. 6078, 2002 U.S. Dist. LEXIS 20305 at *28-29 (S.D.N.Y. October 23, 2002).

36. New York City Police Officers have testified under oath that it is the policy, practice, and custom of the New York City Police Department to conduct strip searches of every person that is arrested. United States v. Gonzalez, 08 Cr 363 (BSJ), 2009 U.S. Dist. LEXIS 59742 at *7 (S.D.N.Y. March 2, 2009).

37. In fact, the Honorable Barbara S. Jones presiding in the Southern District of New York held that "there is a '[NYPD] departmental policy of strip searching all arrestees without making any assessment of particularized circumstances.'" Gonzalez, 2009 U.S. Dist. LEXIS 59742 at *20 (S.D.N.Y. March 2, 2009).

38. As a result of defendant City of New York and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely conduct strip searches without reasonable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers strip searching individuals without a factual basis supporting a legal reason to do so.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stop, questions, frisked, seized, unlawfully searched, falsely arrested, unlawfully strip searched, and falsely imprisoned plaintiff without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

41. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the United States Constitution and laws of the State of New York.

42. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.\

45. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the United States Constitution and laws of the State of New York.

46. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

47. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

49. Defendants lacked probable cause to search plaintiff.

50. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

51. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Failure to Intervene

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

53. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

54. Defendants failed to intervene to prevent the unlawful conduct described herein.

55. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

56. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Unlawful Stop

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The conduct of defendants in stopping and frisking plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

60. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

61. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

62. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional and statutory rights under the New York State law.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. The use of excessive force by defendants in tasing, pushing and hitting plaintiff was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

65. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

66. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the United States Constitution and laws of the State of New York.

67. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Malicious Prosecution

68. Plaintiffs repeat and reallege paragraphs 1 through 67 as if fully set forth herein.

69. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

70. Defendants commenced and continued a criminal proceeding against plaintiff.

71. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

72. The prosecution and criminal proceedings terminated in plaintiffs' favor on the aforementioned dates.

73. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

74. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the United States Constitution and laws of the State of New York.

75. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

76. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Edwin Gonzalez demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York
March 26, 2013

By:



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Sergeant Vincent Lee, 7th Precinct, 19 1/2 Pitt Street, New York, NY, 10013

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
March 26, 2013



STUART E. JACOBS